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Case Number: 24STCV19691 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF
CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE
RULING

TERESA L. BALLEK,

Plaintiff,

v.

FORD MOTOR COMPANY, et al.,

Defendants.

Case No: 24STCV19691

Hearing Date: June
30, 2026

Calendar Number: 5

Defendants Ford Motor

Company and Sunrise Ford of North Hollywood move for summary judgment or in the alternative, summary adjudication as to Plaintiff Teresa L. Ballek's Complaint.

Defendants' motion for summary judgment, or in the alternative, summary adjudication is DENIED in part and GRANTED in part. It is denied as to causes of action 1-4 and granted as to the fifth cause of action for negligent repair.

Background

This is an action for lemon law. On August 6, 2024, Plaintiff Teresa L. Ballek ("Plaintiff") filed a complaint against Defendants Ford Motor Company ("Ford") and Sunrise Ford of North Hollywood ("Sunrise Ford"; together, "Defendants"), alleging causes of action for: (1) Violation of subdivision (d) of Civil Code section 1793.2; (2) Violation of subdivision (b) of Civil Code section 1793.2; (3) Violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; and (5) negligent repair (against Sunrise Ford).

The complaint alleges that on or about December 28, 2023 (the Court notes Defendant's MSJ states the date is December 28, 2022), Plaintiff entered into a warranty contract with Defendant Ford regarding a 2023 Ford Maverick. Plaintiff alleges the vehicle developed defects including transmission defects, engine defects, and electrical defects, and that Defendant Ford has been unable to service or repair the vehicle to conform it to the applicable express warranties after a reasonable number of opportunities.

On December 24, 2025, Defendants filed this motion for summary judgment, or in the alternative, summary adjudication. On June 10, 2026, Plaintiff filed an Opposition. On June 17, 2026, Defendants filed a Reply.

Legal Standard

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co., *supra*,

25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294). “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the [opposing party] cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Discussion

First Cause of

Action for Breach of Express Warranty under Civil Code section 1793.2, subdivision (d)

Defendant

Ford argues that Plaintiff’s first cause of action for breach of express warranty fails because there is no evidence of a non-conformity in the vehicle

that Ford failed to repair after a reasonable number of attempts. Specifically, Defendant contends that Plaintiff presented her vehicle only for basic maintenance and for asymptomatic recall repairs while she still possessed the subject vehicle. On each occasion, the dealership serviced and returned the vehicle to Plaintiff without incident. Defendant argues presentations for only basic maintenance and one- off recalls (to which the subject vehicle did not exhibit the underlying issue) is insufficient as a matter of law to state a claim under the Song Beverly Act. (Silvio v. Ford Motor Co. (2003) 109 Cal. App. 4th 1205, as modified (June 19, 2003).)

Civil Code section 1793.2, subdivision (d)(2) states that if a “manufacturer or its representative” is unable to service or repair a new motor vehicle to conform to the applicable express warranties “after a reasonable number of attempts,” the manufacturer must promptly replace the new motor vehicle or promptly make restitution to the buyer. (Civ. Code, § 1793.2(d)(2).)

In Silvio v. Ford Motor Company, supra, 109 Cal.App.4th at 1208-1209, Plaintiffs presented their Ford Explorer vehicle to an authorized dealer for repair on one occasion after the vehicle suddenly and rapidly accelerated. (Id. at 1207.) Plaintiffs were allegedly informed that their vehicle had no issues but later experienced another episode of sudden acceleration. (Id.) Thereafter, Plaintiffs requested a buyback of the vehicle but were refused and subsequently filed suit against Ford. (Id.) The Court of Appeal found that one instance of presenting the vehicle to Ford was not sufficient for a cause of action under Civil Code section 1793.2, subdivision (d), as Civil Code section 1793.2, subdivision (d) required a manufacturer or its representative buyback the vehicle only if it fails to repair the vehicle after a “reasonable number of attempts.” (Id. at 1208-1209.) The Court of Appeal noted that because “attempts” is in the plural, this means a single instance of presenting the vehicle was not sufficient for purposes of this statute. (Id.)

Defendant presents evidence that Plaintiff presented the Subject Vehicle to Sunrise Ford only on three occasions before trading-in the vehicle on September 16, 2023. On the first occasion, Plaintiff presented the vehicle only for basic maintenance. (UFs 2-3.) On the

second occasion, she brought in the Subject Vehicle complaining about the LCD screen glitching, but then declined to have a corresponding software update completed on that occasion. (UFs 4-6.) Then, on the third occasion, a dealership employee came to her home to perform that LCD software update. (UF 7.) In total then, Defendant contends, Plaintiff only gave Ford, via its authorized repair facility Sunrise Ford, one opportunity to repair the LCD screen given she initially declined update on the August 4, 2023 presentation.

However, Defendant's argument that Plaintiff only gave them one opportunity to repair the screen is unavailing because she had the car serviced twice for the same LCD screen issue. "... [T]he only affirmative step the Act imposes on consumers is to 'permit[] the manufacturer a reasonable opportunity to repair the vehicle.' [] Whether or not the manufacturer's agents choose to take advantage of the opportunity, or are unable despite that opportunity to isolate and make an effort to repair the problem, are matters for which the consumer is not responsible." (Oregel v. Am. Isuzu Motors, Inc. (2001) 90 Cal. App. 4th 1094, 1103–04 (emphasis in original). Indeed, "[e]ach occasion that an opportunity for repairs is provided counts as an attempt..." (Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal. App. 4th 785, 799.)

Further, Defendant's evidence does not show that Plaintiff declined the software update for the LCD screen. In fact, in the cited evidence, Plaintiff told Defendant's counsel that she did not decline the update. (Plaintiff's Depo., 36:10-21; 38:12-14.)

In sum, Defendant fails to show that two attempts cannot be a "reasonable number of attempts." (See Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 799 ["The reasonableness of the number of repair attempts is a question of fact to be determined in light of the circumstances, but at a minimum there must be more than one opportunity to fix the nonconformity."]) Thus, Defendant has not met its burden to show no triable issues of material fact exist and is not entitled to summary adjudication as to the first cause of action.

Second Cause of Action for Breach of Express

Warranty under Civil Code section 1793.2, subdivision (b)

Defendant also moves for summary adjudication as to the second cause of action arguing that Plaintiff cannot establish that it took more than 30 days to repair her vehicle.

Section 1793.2, subdivision (b) states, in pertinent part: "Where ... service or repair of the goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state. Unless the buyer agrees in writing to the contrary, the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days." These are two separate requirements. (See *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 485 ["Service and repair at the manufacturer's authorized repair facility in the state must be commenced 'within a reasonable time.' [Citation.] Goods must be repaired to comply with the warranty within 30 days, unless delay is caused by conditions beyond the control of the manufacturer or its representative. [Citation.]"].)

Defendant argues the vehicle was only out for servicing for three days between all three repair presentations. (UFs 3, 6, 8.)

However, Plaintiff notes that there are two separate allegations in the second cause of action: that Defendant failed to repair the vehicle within 30 days, and that Defendant failed to commence repairs within a reasonable time. Plaintiff opposes the motion, in part, on the ground that Defendant has only attacked one aspect of the claim, which dooms its motion to failure.

The Court agrees.

Defendant is seeking summary adjudication not just on this issue, but on the entire cause of action. As Plaintiff states, the second cause of action contains two claims: that Defendant did not complete repairs within the statutory time, and that Defendant did not commence repairs within a reasonable time. Under the plain language of section 1793.2(b), either claim can be a basis for liability. Defendant completely fails to address this claim. Therefore, Defendant has not met its burden to show no triable issues of material

fact exist. Consequently,
the burden does not shift to Plaintiff to establish a triable issue
of fact.

Third Cause of Action for Breach of Express
Warranty under Civil Code section 1793.2, subdivision (a)(3)

Civil Code

section 1793.2(a)(3) provides, “[e]very manufacturer of consumer goods sold in
this state and for which the manufacturer has made an express warranty shall .
. . . [m]ake available to authorized service and repair facilities
sufficient service literature and replacement parts to effect repairs during
the express warranty period.” (Civ. Code § 1793.2(a)(3).)¿

Defendant contends

there is no evidence, or even a factual allegation in the complaint, supporting
this claim. The complaint specifically alleges that “in violation of Civil Code
section 1793.2, subdivision (a)(3), Defendant FMC failed to make available to
its authorized service and repair facilities sufficient service literature and
replacement parts to effect repairs during the express warranty period.” This
is sufficient.

Defendant again presents evidence that

the Subject Vehicle was presented on only three occasions, and the vehicle was
repaired within the same day on each presentation. Defendant argues is no
evidence that the servicing dealership, Sunrise Ford, lacked any literature or
replacement parts to complete servicing on any of these three occasions.

However, Defendant's evidence shows that

Plaintiff had her car serviced twice for the LCD screen. Thus, Defendant has not met its burden to show no triable
issues of material fact exist as to
the availability and adequacy of diagnostic literature which was necessary to
conduct a proper diagnosis of the vehicle.

Fourth Cause of Action for Breach of the Implied
Warranty of Merchantability

The implied warranty of
merchantability is codified at Civil Code section 1791.1,
which provides, in part:¿

(a) "Implied warranty of merchantability" or "implied warranty that goods are merchantable" means that the consumer goods meet each of the following:¿

(1) Pass without objection in the trade under the contract description.¿

(2) Are fit for the ordinary purposes for which such goods are used.¿

(3) Are adequately contained, packaged, and labeled.¿

(4) Conform to the promises or affirmations of fact made on the container or label.¿

¿

(Civ. Code

§1791.1(a).)¿ Under Civil Code section 1791.1(c), implied warranties have an absolute maximum duration of one year from the sale of new consumer goods.¿ (Atkinson v. Elk Corp. of Texas (2006) 142 Cal.App.4th 212, 230, 231 [expiration is absolute regardless of later discovery].)

Defendant contends that the only warrantable issue for which Plaintiff presented the Subject Vehicle was an issue with the LCD screen intermittently glitching. (UF 4.) Defendant contends this is an objectively minor issue which did not affect the drivability of the Subject Vehicle.

However, Plaintiff presents evidence that she experienced issues beyond the LCD screen including hesitation on acceleration, loss of power, and hard shifting in August 2023. (Lister Decl. Ex. 1 at 32:19–21, 35:1.) Defendant contends the evidence is Plaintiff's self-serving deposition testimony which is not corroborated by other evidence. But Defendant fails to explain why Plaintiff's deposition testimony is not sufficient.

Thus, triable issues of material fact exist.

Defendant argues

there also is no evidence of damages in connection with the implied warranty claim. Defendant argues that Plaintiff has offered no evidence that the vehicle was worth less due to any implied warranty issue. But Defendant fails to cite to any evidence. Thus, this argument is unavailing.

Fifth Cause of Action for Negligent Repair

Defendant argues Plaintiff's fifth cause

of action for negligent repair against Sunrise Ford is barred by the economic loss rule.

"In general, there is no

recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (Sheen v.

Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.)² "California

Courts define economic loss as 'damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.'" (Department of Water & Power v. ABB Power T & D Co. (C.D.Cal. 1995)

902 F.Supp. 1178, 1186, fn. 4.)³

Here, Plaintiff alleges that

Defendant performed repair services pursuant to warranty. (Compl., ¶ 15.) Plaintiff admitted in her deposition that she never suffered any personal injury or property damage due to the Subject Vehicle. (UF 11.)

Accordingly, Plaintiff must provide

evidence that she suffered a personal injury or damages to property other than Defendant's alleged failure to repair the Vehicle. Plaintiff does not oppose this point. Thus, Defendant is entitled to summary adjudication as to the fifth cause of action for negligent repair.